



CHAPTER xxxv.

An Act to empower the Fylde Water Board to extend the periods limited by the Fylde Water Board Acts 1910 and 1912 for the purchase of certain lands and the construction of certain works to increase the charges for the supply of water and for other purposes. A.D. 1919.
[31st July 1919.]

WHEREAS by the Fylde Waterworks (Transfer) Act 1897 (hereinafter called "the Act of 1897") the Fylde Water Board (in this Act called "the Board") were constituted and incorporated and were empowered to supply and are supplying water within the borough of Blackpool and the urban districts of Fleetwood Lytham St. Annes-on-the-Sea and other places all in the county palatine of Lancaster:

And whereas further powers were conferred upon the Board and provisions enacted by the following Acts and Orders (that is to say):—

The Fylde Water Board Act 1899;

The Fylde Order 1904 (confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1904);

The Fylde Order 1905 (confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1905);

The Fylde Water Board Act 1910;

The Fylde Water Board Act 1912;

and each of those Acts and Orders is in this Act separately referred to as the Act or Order of the year in which it was passed or confirmed:

[Price 9d. Net.]

A.D. 1919.

And whereas by Orders of the Local Government Board issued under the Special Acts (Extension of Time) Act 1915 and dated respectively the fourth day of August nineteen hundred and seventeen and the fifth day of August nineteen hundred and eighteen the time limited for the compulsory purchase of the lands necessary for works Nos. 1 3 5 and 7 authorised by the Act of 1912 was extended until the seventh day of August nineteen hundred and nineteen:

And whereas by deed dated the twelfth day of October nineteen hundred and sixteen and made between John Stirling Ainsworth and the Board the said John Stirling Ainsworth agreed that the time for constructing the works which the Board under the powers of the Act of 1910 might make which related to or affected the lands of the said John Stirling Ainsworth should be extended to ten years after the passing of the said Act:

And whereas it is expedient that the period limited by the Act of 1910 for the completion of works by that Act authorised and the periods limited by the Act of 1912 for the compulsory purchase of certain lands and for the construction of works under that Act should be extended:

And whereas by the Act of 1910 the Board were empowered to borrow the sum of two hundred and twelve thousand pounds for certain purposes specified in section 31 of that Act and therein marked (a) and (b) respectively and by the Act of 1912 the Board were empowered to borrow the sum of one million four hundred and twenty-three thousand three hundred and sixty-four pounds for certain purposes specified in section 58 of that Act and therein marked (a) and (b) respectively:

And whereas through circumstances arising out of the present war the said sums of two hundred and twelve thousand pounds and one million four hundred and twenty-three thousand three hundred and sixty-four pounds are insufficient for the purposes for which they were authorised to be borrowed and estimates have been prepared by the Board of the additional money which will be required for the construction and completion of such of the works authorised by the Acts of 1910 and 1912 as have not yet been constructed and such estimates amount to one million three hundred and nine thousand eight hundred and twenty-two pounds:

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years: A.D. 1919.

And whereas the rates and charges which the Board are authorised to make under the Acts of 1897 and 1899 are insufficient to meet the interest and sinking fund payments in respect of the moneys which the Board have been empowered to borrow for the works authorised by the Acts of 1910 and 1912 and the financial position of the Board's undertaking has been adversely affected further by circumstances arising out of the present war and it is expedient to empower the Board to make the increased charges authorised by this Act for the supply of water:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1.—(1) This Act may be cited as the Fylde Water Board Act 1919. Short and collective titles.

(2) The Acts and Orders set forth in the preamble to this Act and this Act may be cited as the Fylde Water Board Acts 1897 to 1919.

2. The period limited by section 45 (Period for compulsory purchase of lands) of the Act of 1912 for the compulsory purchase of lands necessary for works Nos. 6 13 14 and 15 authorised by that Act is hereby extended until the expiration of three years after the termination of the present war. Extending time for purchase of lands.

3.—(1) The period limited by section 13 (Period for completion of works) of the Act of 1910 for the completion of the works authorised by that Act is hereby extended until the expiration of ten years after the passing of this Act. Extending periods for completion of works.

(2) Notwithstanding anything contained in subsection (11) of section 8 (For the protection of John Stirling Ainsworth) of the Act of 1910 the Board shall erect and complete the

A.D. 1919. boundary fence or wall referred to in that subsection unless otherwise agreed between the Board and the said John Stirling Ainsworth within five years after the passing of this Act.

(3) The period limited by section 22 (Period for completion of works) of the Act of 1912 for the completion of the works authorised by that Act (other than works Nos. 1 and 5) is hereby extended until the expiration of twenty years after the passing of this Act.

Increase of maximum rates and charges for supply of water.

4.—(A) The maximum rates and charges which the Board may demand and take under section 21 (Rates for the supply of water for domestic purposes) of the Act of 1899 are hereby increased by twenty-five per centum upon the respective amounts thereof for the period of three years from the passing of this Act and after the expiration of that period the said maximum rates and charges shall be increased by fifty per centum.

(B) The maximum rates and charges which the Board may demand and take under the following sections of the Acts of 1897 and 1899 for the supplies of water in those sections respectively mentioned are hereby increased by fifty per centum upon the respective amounts thereof (that is to say):—

ACT OF 1897.

Section 38 (Charges for supply of water to farms).

ACT OF 1899.

Section 24 (Rates for supply to shipping);

Section 25 (Price of water for sanitary purposes);

Section 28 (Supply to houses partly used for trade &c.);

Section 35 (Supply of water for other than domestic purposes and by measure).

Amendment of section 3 of Act of 1899.

5. Section 3 (Amendment of section 35 of Waterworks Clauses Act 1847) of the Act of 1899 shall be read and have effect as if the words "eight pounds per centum" were substituted for the words "six pounds per centum."

Power to local authorities to contract for supply of water.

6.—(1) Any local authority whose district or a part of whose district is situate within the limits for the supply of water by the Board shall be entitled to require the Board to supply and the Board shall thereupon take all necessary steps to supply and as

soon as they are in a position to do so shall supply water for domestic use to such of the owners or occupiers of houses in the district as the local authority may require on terms and conditions including an undertaking by the local authority to contribute from their funds any sums required by the Board during a period of ten years from the date when the Board commence to give any such supply to make up any difference in any year between the aggregate amount of water rate payable in that year by the owners or occupiers so supplied and a sum equal to eight pounds per centum upon the expense of providing and laying down the pipes for the supply of water to such owners or occupiers. For the purposes of this subsection the expression "water rate" shall have the meaning assigned to it by the Waterworks Clauses Act 1847. A.D. 1919.

(2) Any such local authority and the Board shall be fully empowered to make and enforce any such contract as aforesaid as if the same were a contract in pursuance of the Public Health Act 1875 for a supply of water by any person to the local authority.

7.—(1) The period within which the Board shall pay off all money already borrowed or hereafter to be borrowed by them under section 31 (Power to borrow) of the Act of 1910 for the purposes (a) in that section mentioned shall be fifty-five years from the date or dates of borrowing the same instead of fifty-five years from the passing of the Act of 1910 and subsection (3) of the said section 31 shall be read and construed accordingly. Extension of period for repayment of moneys borrowed under Act of 1910.

(2) In the case of any money borrowed by the Board under the said section 31 for the said purposes (a) before the passing of this Act the date of borrowing the same shall for the purpose of calculating the period for repayment in accordance with the provisions of subsection (1) of this section be deemed to be a date five years after the date upon which the money was actually borrowed.

(3) Any sinking fund already established by the Board for the purpose of providing for the repayment of any money borrowed by the Board under the said section 31 for the said purposes (a) shall be recalculated and adjusted so as to accord with the provisions of subsections (1) and (2) of this section and any amount by which the sums paid in by the Board to such sinking fund exceed the sums required for such sinking fund in accordance with this section shall together with any interest thereon

A.D. 1919. accumulated in such sinking fund be credited in reduction of the sums hereafter to be paid in by the Board to such sinking fund.

(4) In the case of any money borrowed by the Board under the said section 31 for the purposes (b) in the said section mentioned before the passing of this Act the date of borrowing the same shall for the purpose of calculating the period for repayment be deemed to be a date five years after the date upon which the money was actually borrowed.

(5) Any sinking fund already established by the Board for the purpose of providing for the repayment of any money borrowed by the Board under the said section 31 for the said purposes (b) shall be recalculated and adjusted so as to accord with the provisions of subsection (4) of this section and any amount by which the sums paid in by the Board to such sinking fund exceed the sums required for such sinking fund in accordance with this section shall together with any interest thereon accumulated in such sinking fund be credited in reduction of the sums hereafter to be paid in by the Board to such sinking fund.

Further
postpone-
ment of
payments to
sinking fund
under Act
of 1910.

8. In the case of all money which may hereafter be borrowed by the Board under section 31 (Power to borrow) of the Act of 1910 for the purpose of the Warbreck Reservoir the Warbreck Tower and the equilibrium basin in that section mentioned or for any of those purposes it shall not be obligatory upon the Board to commence the repayment (by sinking fund or otherwise) until the completion of the said works or until the expiration of ten years from the passing of the Act of 1910 whichever shall first happen and subsection (3) of the said section 31 shall be read and construed accordingly.

Further
postpone-
ment of
payments to
sinking fund
under Act
of 1912.

9.—(1) In the case of all money which may hereafter be borrowed by the Board under section 58 (Power to borrow) of the Act of 1912 for any or all of the purposes (a) and the purpose (b) in that section mentioned and in the case of all money which has already been borrowed by the Board under the said section for any or all of the said purposes and in respect of which at the passing of this Act the time for commencing the repayment of the money has not arrived it shall not be obligatory upon the Board to commence the repayment (by sinking fund or otherwise) until the completion of the works comprised in the purposes (a) or the purpose (b) as the case may be (according to the purpose for which the money is borrowed) or

until the expiration of fifteen years from the passing of the Act of 1912 whichever shall first happen and subsection (3) of the said section 58 shall be read and construed accordingly. A.D. 1919.

(2) In the case of any money borrowed by the Board under the said section 58 for the said purposes (a) and the said purpose (b) before the passing of this Act the date of borrowing the same shall for the purpose of calculating the period for repayment be deemed to be a date five years after the date upon which the money was actually borrowed.

10.—(1) The Board may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay all moneys so borrowed within the respective periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the third column thereof (namely):— Power to borrow.

Purpose. 1.	Amount. 2.	Period for Repayment. 3.
(a) For and in connection with the construction and completion of the works authorised by the Act of 1910 and included among the purposes (a) mentioned in subsection (1) of section 31 of that Act.	£ 100,601	Fifty-five years from the date or dates of borrowing.
(b) For and in connection with the construction of the aqueducts high level mains and extensions of mains authorised by the Act of 1910 and included in the purposes (b) mentioned in subsection (1) of section 31 of that Act.	37,430	Forty years from the date or dates of borrowing.
(c) For and in connection with the purchase of lands and easements and the construction of the reservoirs and road diversions authorised by the Act of 1912 and included in the purposes (a) mentioned in subsection (1) of section 58 of that Act.	728,161	Sixty years from the date or dates of borrowing.
(d) For and in connection with the construction of the aqueducts authorised by the Act of 1912 and included in the purpose (b) mentioned in subsection (1) of section 58 of that Act.	443,630	Forty-five years from the date or dates of borrowing.
(e) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.

A.D. 1919.

(2) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Board may mortgage or charge the revenue of their water undertaking and the moneys receivable by them from the constituent authorities defined by the Act of 1897 and all rates and moneys which they are authorised to levy and collect within the districts of the constituent authorities under the powers of that Act.

Incorporation of financial provisions of Acts of 1897 and 1912.

11. The following sections of the Act of 1897 and the Act of 1912 shall with the necessary modifications extend and apply to and with respect to moneys borrowed under this Act:—

ACT OF 1897.

- Section 50 (Mode of raising money);
- Section 51 (Provisions of Public Health Act as to mortgages to apply);
- Section 53 (Mode of payment off of money borrowed);
- Section 54 (Sinking fund);
- Section 55 (Protection of lender from inquiry);
- Section 56 (Board not to regard trusts);
- Section 57 (Appointment of receiver);
- Section 59 (Annual return to Local Government Board) as amended by section 36 of the Act of 1910;
- Section 60 (Application of money borrowed);
- Section 62 (Board may issue stock);
- Section 66 (Audit).

ACT OF 1912.

Section 60 (Power to re-borrow).

Rate of accumulation of annual payments to sinking funds for repayment of loans and contributions for redemption of stock.

12.—(1) Paragraph (B) of subsection (1) of section 54 (Sinking fund) of the Act of 1897 shall be repealed and the following provision shall be substituted therefor:—

(B) By payment to the fund of such equal annual sums as with accumulations at the rates hereinafter mentioned will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed (namely):—

(i) For a period of ten years after the thirty-first day of March nineteen hundred and twenty three pounds ten shillings per centum per annum;

(ii) For the remainder of the prescribed period A.D. 1919.
three pounds per centum per annum ;

or in either case such higher rate as may from time
to time be approved by the Local Government Board
A sinking fund so formed is hereinafter called an
accumulating sinking fund.

(2)—(A) The concluding words of section 7 (Power to issue
stock) of the Act of 1899 shall be read and have effect as follows
(namely) “and the rate per centum per annum for the purposes
“ of those provisions for the period of ten years after the thirty-
“ first day of March nineteen hundred and twenty shall be three
“ pounds ten shillings and after the expiration of that period
“ shall be three pounds.”

(B) Section 61 (Amendment of section 7 of Act of 1899) of
the Act of 1912 is hereby repealed.

13. The costs charges and expenses preliminary to and of Costs of Act.
and incidental to the preparing applying for obtaining and passing
of this Act as taxed by the taxing officer of the House of Lords
or of the House of Commons shall be paid by the Board out of
the revenue of their water undertaking or out of money to be
borrowed under this Act for that purpose.

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